

11	Collison vs. KRC Santa Margarita, LLC 30-2025-01530542-CU-PO-CJC	Demurrer to First Amended Complaint Defendant KRC Santa Margarita, LLC's (KRC) Demurrer to Plaintiff's First Amended Complaint (FAC) is OVERRULED. The FAC is not uncertain. At this stage, the allegations are sufficient to put KRC on notice of the claims against it. Any additional factual detail may be obtained through discovery. The FAC alleges Defendants had repeated notice that Plaintiff was suffering from dementia, impaired judgment, worsening mobility, and an escalating risk of falls. (FAC, ¶¶ 13-16.) Despite repeated falls while inadequately supervised, repeated hospitalizations, repeated therapy recommendations, and repeated documentation demonstrating Plaintiff's deteriorating condition, Defendants failed to increase supervision, failed to modify Plaintiff's care plans, failed to implement appropriate fall interventions, and continued to expose Plaintiff to the same known dangers. (FAC, ¶¶ 17-63, 69-90). The FAC further alleges KRC's and Kisco's officers, directors, administrators, executive directors, regional managers, and/or managing agents knew Plaintiff had suffered repeated falls, repeated hospitalizations, worsening cognition, worsening mobility, and increasing dependency. (FAC, ¶ 66.) Despite that knowledge, KRC's and Kisco's officers, directors, administrators, executive directors, regional managers, and/or managing agents knowingly ratified and approved the dangerous custodial practices by failing to take corrective measures. (FAC, ¶ 71.) These allegations are sufficient to plead elder abuse. (See <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 31-33; <i>White v. Ultramar, Inc.</i> (1999) 21 Cal.4th 563, 572-577.) Defendants are ORDERED to file an answer within 10 days. Clerk to give notice.
12	Paz vs. Clarke Law Medical Corp. 30-2025-01507092-CU-WT-CJC	Demurrer to Complaint Defendant Clarke Law Medical Corp.'s Demurrer to Plaintiff Mireya Paz's Complaint is CONTINUED to 8/14/2026 at 10:00 AM. Defendant's counsel filed a declaration stating Defendant is in the process of reviewing Plaintiff's proposed First Amended Complaint (FAC) and the parties are considering